

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

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WINSTON MCLENNON, KARLICK PRICE, and
STEPHEN AUGUSTINE, individually and on behalf
of a class of all others similarly situated,

Plaintiffs,

-against-

THE CITY OF NEW YORK, a municipal entity; NEW
YORK CITY POLICE COMMISSIONER WILLIAM J.
BRATTON, in his official capacity; NEW YORK CITY
POLICE TRANSPORTATION BUREAU CHIEF
THOMAS CHAN, in his individual and official
capacities; FORMER NEW YORK CITY POLICE
TRANSPORTATION BUREAU CHIEF JAMES
TULLER, in his individual capacity; NEW YORK CITY
POLICE HIGHWAY PATROL COMMANDER PAUL
CIORRA, in his individual and official capacities;
HIGHWAY PATROL UNIT 3 OFFICER KEITH
PENNEY (Shield No. 16412), in his individual capacity;
HIGHWAY PATROL UNIT 3 OFFICER NICHOLAS
KONKOWSKI (Shield No. 6981), in his individual
capacity; HIGHWAY PATROL UNIT 3 OFFICER
JOHN LOUKOPOULOS (Shield No. 12569), in his
individual capacity; HIGHWAY PATROL UNIT #3
OFFICER JORDAN BISTANY (Shield No. 22702), in
his individual capacity; HIGHWAY PATROL UNIT #3
OFFICER GEORGE LUTI (Shield No. 26504), in his
individual capacity; NEW YORK CITY POLICE
OFFICIALS JANE and JOHN DOES 1-20, in their
official and individual capacities; and HIGHWAY
PATROL OFFICERS JANE and JOHN DOES 1-20, in
their individual capacities,

Defendants.
----- X

**AMENDED CLASS ACTION
COMPLAINT**

14-cv-06320-MKB-RER

DEMAND FOR JURY TRIAL

PRELIMINARY STATEMENT

1. This is a civil rights action in which named Plaintiffs Winston McLennon, Karlick Price and Stephen Augustine, individually and on behalf of a class of similarly situated

individuals, seek relief for Defendants' misuse of a police practice known as "stand out" or "step out" enforcement to avoid the requirements of establishing legitimate and constitutionally compliant vehicle checkpoints. In doing so, Defendants have illegally stopped and detained countless drivers and their passengers in New York City, and maliciously prosecuted more than one hundred of those drivers, in violation of their rights, privileges, and immunities secured by the Civil Rights Act of 1871, 42 U.S.C. § 1983, the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution and laws of the State of New York.

2. The Defendants in this action, the City of New York ("the City"), New York City Police Commissioner William J. Bratton ("Commissioner Bratton"), New York City Police Transportation Bureau Chief Thomas Chan ("Chief Chan"), Former New York City Police Transportation Bureau Chief James Tuller ("Former Chief Tuller"), New York City Police Highway Patrol Commander Paul Ciorra ("Commander Ciorra"), Highway Patrol Unit 3 Officer Keith Penney (Shield No. 16412) ("Officer Penney"), Highway Patrol Unit 3 Officer Nicholas Konkowski (Shield No. 6981) ("Officer Konkowski"), Highway Patrol Unit 3 Officer John Loukopoulos (Shield No. 12569) ("Officer Loukopoulos"), Highway Patrol Unit 3 Officer Jordan Bistany (Shield No. 22702) ("Officer Bistany"), Highway Patrol Unit 3 Office George Luti (Shield No. 26504) ("Officer Luti"), New York City Police Officials Jane and John Does 1-20, and Highway Patrol Officers Jane and John Does 1-20, have implemented and are continuing to enforce, encourage, and sanction a policy, practice, and/or custom of New York City Police Department Highway Patrol officers stopping motorists in the City of New York, including Plaintiffs and others similarly situated, in the absence of the reasonable, articulable suspicion required by the Fourth Amendment, at unregulated checkpoints that do not comport with the Fourth Amendment.

3. In addition, this pattern, practice, and/or custom of suspicionless, unregulated checkpoint stops involves unconstitutionally seizing, questioning, and searching drivers without any legal basis, and illegally detaining, falsely arresting, and maliciously prosecuting them.

4. Unconstitutional checkpoint stops, and the resulting illegal seizures, searches, arrests, and prosecutions have flourished as a result of, and are directly and proximately caused by, policies, practices and/or customs devised, implemented and enforced by the Defendants, who have acted with deliberate indifference to the constitutional rights of drivers by: (a) failing to properly screen, train, and supervise Highway Patrol officers with respect to establishing and conducting legally permissible checkpoint enforcement stops; (b) failing to adequately monitor and supervise the activities of Highway Patrol officers to prevent unconstitutional *de facto* checkpoint stops, seizures, and search practices from taking place; (c) failing to sufficiently discipline Highway Patrol officers who engage in constitutional abuses, including, but not limited to such conduct as unlawful stops, preparation of false accusatory instruments, and fabricating evidence; and (d) encouraging and/or failing to sanction or rectify these unconstitutional practices.

5. The persistent pattern, policy, practice and/or custom of conducting these unconstitutional checkpoints has been widely known and reported. In a series of reported judicial decisions beginning in June 2012, New York criminal court judges have found that these unregulated checkpoint stops violate clearly-established federal constitutional rights and New York law. *See People v. Nandlall*, Docket No. 2011QN029355 (N.Y. Criminal Court Queens Cnty. June 14, 2012) (Michael J. Yavinsky, J.); *People v. Rakitzis*, Docket No. 2012QN000287 (N.Y. Criminal Court Queens Cnty. June 27, 2012) (Michael J. Yavinsky, J.); *People v. McLennon*, Docket No. 2011QN058200 (N.Y. Criminal Court Queens Cnty. July 31, 2012)

(Stephanie Zaro, J.); *People v. Perez*, Docket No. 2011QN056990 (N.Y. Criminal Court Queens Cnty. Feb. 13, 2013) (Mary O'Donoghue, J.); *People v. Garcia*, Docket No. 2011QN043391 (N.Y. Criminal Court Queens Cnty. Mar. 12, 2014) (David M. Hawkins, J.).

6. In each of these cases, the Court found that Highway Patrol officers had conducted a suspicionless stop that constituted a Fourth Amendment seizure and that the stop was the result of an unregulated and legally impermissible checkpoint. In each of these cases, the Court also found incredible the testimony of defendant Highway Patrol officers regarding their purported justification for the stop. In each of these cases, the Court found that any evidence supporting criminal charges was unconstitutionally obtained, and must be suppressed. In each of these cases, the criminal charges were dismissed. These judicial decisions were personally served on the NYPD headquarters at One Police Plaza and the NYPD Highway Patrol Unit 3 on August 16, 2012.

7. Nonetheless, despite actual notice of judicial decisions admonishing Highway Patrol officers for conducting illegal, suspicionless, unregulated checkpoint stops and despite the fact that these decisions reveal a pattern of dishonest officer testimony meant to justify otherwise unlawful stops, the unlawful policy, practice and/or custom of unconstitutional checkpoint stops continues.

8. More than one hundred prosecutions have been docketed in Queens County Criminal Court since the practice of suspicionless, unregulated checkpoint stops was detected in 2011. The Legal Aid Society alone has represented eighteen defendants who were arrested and prosecuted as a result of unconstitutional checkpoint stops *subsequent* to service of the judicial decisions on August 16, 2012, informing the NYPD and Highway Patrol Unit 3 of the

unconstitutionality of this policy, practice and/or custom of utilizing unregulated and illegal checkpoints.

9. Furthermore, supervising officials have ratified the unlawful policy, practice and/or custom by rewarding the Highway Patrol Officers conducting such illegal suspicionless checkpoint stops with official commendations, public praise and/or other recognition.

10. As a direct and proximate result of this policy, practice and/or custom, countless drivers have been, and more continue to be, subjected to unconstitutional suspicionless checkpoint stops by Highway Patrol officers. Indeed, many drivers have been repeatedly stopped at illegal suspicionless checkpoints. These constitutional abuses have been attended by unlawful searches and seizures, false arrests, and malicious prosecutions.

11. Following the entry of judicial decisions finding the practice unconstitutional, the Queens County District Attorney's Office ("DA's Office") began offering nearly all individuals subsequently arrested by the Highway Patrol Unit 3 at an illegal checkpoint adjournments in contemplation of dismissal.

12. Despite judicial determination that these unregulated, *de facto* checkpoints are unconstitutional, upon information and belief, neither the NYPD nor the Highway Patrol Unit has taken any action to halt the practice of stopping, searching, arresting, and prosecuting individuals arrested through the use of "stand out" or "step out" enforcement methods that are deliberate efforts to avoid the requirements of establishing a legitimate and constitutionally compliant checkpoint.

13. The named Plaintiffs seek to represent a certified class for the purpose of obtaining injunctive and declaratory relief (the "Injunction Class") and a certified class for the purpose of obtaining compensatory and punitive damages (the "Damages Class").

14. As for the Injunction Class, the named Plaintiffs seek a class-wide judgment declaring that the policies, practices and/or customs described herein violate the Fourth and Fourteenth Amendments and the New York State Constitution and laws. The named Plaintiffs further request a class-wide injunction enjoining defendants from continuing such unlawful policies, practices and/or customs and directing them to implement all necessary measures to ensure against such unlawful policies, practice and/or customs from being reinstated.

15. As for the Damages Class, the named Plaintiffs seek compensatory and punitive damages. As for each class, the named Plaintiffs seek an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

JURISDICTION

16. Jurisdiction is conferred upon this Court under 28 U.S.C. §§ 1331 and 1343(a)(3) and (4), as this action seeks redress for the violation of Plaintiffs' federal constitutional and civil rights.

17. Plaintiffs' claims for declaratory and injunctive relief are authorized by 28 U.S.C. §§ 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

18. This Court also has supplemental jurisdiction, pursuant to 28 U.S.C. § 1367(a), over Plaintiffs' claims under state law because they are so related to the claims within the original jurisdiction of this Court that they form part of the same case or controversy.

VENUE

19. Venue is proper in the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

JURY DEMAND

20. Plaintiffs demand a trial by jury in this action on each and every one of their claims to which they are entitled.

PARTIES

As to Class Members

21. All members of the Injunction and Damages Classes are persons who, at the time of their unlawful stops, were drivers of or passengers in vehicles traveling on the streets, highways, thoroughfares and service ramps in the City of New York where the NYPD implements its policy, practice, and/or custom of unlawful checkpoint stops.

22. Each class member was stopped by an officer, without the requisite and articulable level of suspicion, at a checkpoint that failed to comply with the Fourth Amendment.

23. Members of the Damages Class are those members of the Injunction Class who, in addition to being unlawfully stopped, were arrested and/or prosecuted as a result of their unlawful stop.

24. Each Damages Class member was subjected to an illegal seizure, unlawful detainment, and malicious prosecution.

25. As a result, each Damages Class member suffered loss of liberty; loss of income; embarrassment; humiliation; emotional, mental, and psychological pain and suffering; reputational harm; and/or incurred attorney's fees.

As to the Named Plaintiffs

26. Plaintiff WINSTON MCLENNON ("Mr. McLennon") is a 44-year old African-American male who resides in the City of New York and borough of Brooklyn.

27. Mr. McLennon travels on the Grand Central Parkway and other streets, highways, thoroughfares, and service ramps in Queens where NYPD officers patrol and/or conduct these unlawful checkpoint stops.

28. On October 28, 2011, Mr. McLennon was unlawfully stopped at an illegal checkpoint on a ramp at the intersection of the Grand Central Parkway and the Long Island Expressway in Queens and was arrested and maliciously prosecuted.

29. Plaintiff KARLICK PRICE ("Mr. Price") is a 27-year old African-American male who resides in Long Island City, New York.

30. Mr. Price travels on the Grand Central Parkway and other streets, highways, thoroughfares, and service ramps in Queens where NYPD officers patrol and/or conduct these unlawful checkpoint stops.

31. On June 13, 2014, Mr. Price was unlawfully stopped, detained, and arrested at an illegal checkpoint in Queens, on the ramp at the same intersection of the Grand Central Parkway and the Long Island Expressway as Plaintiff McLennon had been unlawfully stopped, nearly three years prior.

32. Plaintiff STEPHEN AUGUSTINE ("Mr. Augustine") is a 46-year old African-American male who currently resides in Westerville, Ohio.

33. Mr. Augustine's mother and relatives reside in New York City and he frequently returns to visit. When he does, Mr. Augustine travels on the Grand Central Parkway and other streets, highways, thoroughfares, and service ramps in Queens where NYPD officers patrol and/or conduct these unlawful checkpoint stops.

34. On November 28, 2014, Mr. Augustine was unlawfully stopped, detained, and arrested at an illegal checkpoint in Queens, on the ramp at the same intersection of the Grand

Central Parkway and the Long Island Expressway as Plaintiffs McLennon and Price had been unlawfully stopped.

Defendants

35. Defendant CITY OF NEW YORK (“the City”) is a municipal entity created by and authorized under the laws of the State of New York. It is authorized to maintain a police department, and does maintain the New York City Police Department (“NYPD”), which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers. The NYPD’s operations include the operations described herein.

36. The NYPD maintains a Highway Patrol Unit for each borough of New York City. Highway Patrol Unit 3 has jurisdiction to patrol the streets, highways, thoroughfares, and exit and entry ramps in the borough of Queens.

37. Defendant COMMISSIONER BRATTON is the Police Commissioner of the City of New York and is responsible for creating, supervising, administering, and/or overseeing the policies, practices, and/or customs of the NYPD. COMMISSIONER BRATTON is responsible for the hiring, screening, training, retention, supervision, discipline, counseling, and control of the police officers under his command who are employed by the NYPD, including the defendants named herein. COMMISSIONER BRATTON is sued in his official capacity.

38. Defendant CHIEF CHAN is, at times relevant herein, the Chief of the Transportation Bureau for the NYPD, and is currently responsible for supervising, monitoring, and carrying out the policies, practices and/or customs of the NYPD regarding enforcement of traffic laws, traffic management, and highway safety. He is, at times relevant herein, responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the

police officers under his command who are or were employed by the NYPD, including the defendant Highway Patrol officers named herein. He is sued in his individual and in his official capacity.

39. Defendant FORMER CHIEF TULLER was, at times relevant herein, the Chief of the Transportation Bureau for the NYPD, and was, at times relevant herein, responsible for supervising, monitoring, and carrying out the policies, practices and/or customs of the NYPD regarding enforcement of traffic laws, traffic management, and highway safety. He was, at times relevant herein, responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the police officers under his command who are or were employed by the NYPD, including the defendant Highway Patrol officers named herein. He is sued in his individual capacity.

40. The NYPD Highway Patrol, headed by defendant COMMANDER CIORRA, is a specialized unit under the auspices of the NYPD's Transportation Bureau primarily responsible for patrolling, maintaining traffic safety, and enforcing traffic laws on limited-access highways within New York City. The NYPD Highway Patrol's other duties and roles include, but are not limited to, accident investigations, advanced driver and radar training for NYPD officers, field sobriety testing, and checkpoint enforcement at key bridges and intersections in the city. Defendant COMMANDER CIORRA is and was, at all times relevant herein, responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the police officers under his command who are or were employed by the NYPD, including the defendant Highway Patrol officers named herein. He is sued in his individual and official capacities.

41. Defendants NEW YORK CITY POLICE OFFICIALS JOHN and JANE DOES 1-20, at times relevant herein, held supervisory positions within the NYPD and were responsible

for supervising, monitoring, and carrying out the policies, practices and/or customs of the NYPD regarding enforcement of traffic laws, traffic management, and highway safety and/or were responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the police officers under their command who are or were employed by the NYPD. They were at all times relevant herein responsible for supervising the Highway Patrol officers who conducted the unconstitutional checkpoint stops described herein. Each officer is sued in his/her individual capacity.

42. Defendants OFFICER PENNEY, OFFICER KONKOWSKI, OFFICER LOUKOPOULOS, OFFICER BISTANY, and OFFICER LUTI are, and/or were, at all times relevant herein, officers, employees or agents of the NYPD. They were at all times relevant herein, members of the NYPD Highway Patrol Unit 3 and participated in conducting the unconstitutional checkpoint stops described herein. Each officer is sued in his/her individual capacity.

43. Defendants and HIGHWAY PATROL OFFICERS JANE and JOHN DOES 1-20 are, and/or were, at all times relevant herein, officers, employees or agents of the NYPD. They were at all times relevant herein, members of the NYPD Highway Patrol and participated in conducting the unconstitutional checkpoint stops described herein. Each officer is sued in his/her individual capacity.

44. At all times relevant herein, defendants Commissioner Bratton, Chief Chan, Former Chief Tuller, Commander Ciorra, Officer Penney, Officer Konkowski, Officer Loukopoulos, Officer Bistany, Officer Luti, New York City Police Officials Jane and John Does 1-20, and Highway Patrol Officers Jane and John Does 1-20 have acted or/are continuing to act under the color of state law in the course and scope of their duties and functions as agents,

employees, and officers of the City and/or the NYPD in engaging in the conduct described herein. At all times relevant herein, defendants have acted for and on behalf of the City and/or the NYPD with the power and authority vested in them as officers, agents, and employees of the City and/or the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the City and/or the NYPD.

45. At all times relevant herein, Defendants have violated and/or continue to violate clearly established constitutional standards under the Fourth and Fourteenth Amendments and the New York State Constitution of which a reasonable officer in their position would have known.

CLASS ACTION ALLEGATIONS

46. Pursuant to Rule 23(a), (b)(2), and (b)(3) of the Federal Rules of Civil Procedure, the named Plaintiffs seek to represent two certified plaintiff classes as follows:

a. All those persons who have been or will be subjected by NYPD officers to defendants' policy, practice and/or custom, in violation of the Fourth Amendment, of stopping persons at unregulated, suspicionless checkpoints in the City of New York in the absence of reasonable, articulable suspicion that criminal activity is taking place ("the Injunction Class").

b. All those persons who have been or will be subjected by NYPD officers to defendants' policy, practice and/or custom, in violation of the Fourth Amendment, of stopping persons at unregulated, suspicionless checkpoints in the City of New York in the absence of reasonable, articulable suspicion that criminal activity is taking place who were arrested and/or prosecuted as a result of their unlawful stop ("the Damages Class").

47. The members of each class are so numerous as to render joinder impracticable. Based on publicly available information, hundreds of people have been arrested following stops at such unconstitutional checkpoints on the streets, highways, thoroughfares, and service ramps in the City of New York by the NYPD without reasonable, articulable suspicion of criminal conduct. The pattern of stops came to the attention of Legal Aid attorneys approximately four years ago, in or about 2011, have continued to date, and are likely to continue or, in the event the stops are discontinued, to be reinstated in the absence of an injunction.

48. In addition, joinder is impracticable because, upon information and belief, many members of each class are not aware of the fact that their constitutional rights have been violated and that they have the right to seek redress in court. Upon information and belief, many members of the class are without the means to retain an attorney to represent them in a civil rights lawsuit. Moreover, many members of each class who have been victimized by the NYPD's unconstitutional practices do not bring individual claims. There is no appropriate avenue for the protection of the class members' constitutional rights other than a class action.

49. The class members share a number of questions of law and fact in common, including, but not limited to:

- a. whether the NYPD engages in a policy, practice and/or custom of stopping cars on the streets, highways, thoroughfares, and service ramps in the City of New York at unregulated checkpoints in the absence of reasonable, articulable suspicion of criminal conduct;
- b. whether these stops violate the Fourth and Fourteenth Amendments, and Article I, Section 12 of the New York State Constitution;

c. whether the NYPD, incidental to such stops, conducts searches, seizures, arrests, and/or prosecutions that violate the Fourth and Fourteenth Amendments and Article I, Section 12 of the New York State Constitution;

d. whether the City, Commissioner Bratton, the other NYPD supervisory defendants, and supervising officials and/or personnel of the NYPD have failed to adequately and properly screen, train, supervise, monitor and discipline NYPD officers, and whether those failures have resulted in unconstitutional stops of class members;

e. whether the City, Commissioner Bratton, the other NYPD supervisory defendants, and supervising officials and/or personnel of the NYPD encouraged, sanctioned and/or failed to rectify unconstitutional checkpoint stops by members of the NYPD, and whether such acts and omissions have resulted in and will continue to result in constitutional violations by NYPD officers against class members.

50. These common questions of fact and law all flow from the same policies, enacted by the named and unnamed defendants, and implemented by the same named and unnamed defendants. The named Plaintiffs and all class members were victimized by these same policies of stopping cars at unregulated and unlawful checkpoints in the City of New York, and thus the foregoing common questions of law and fact greatly predominate over any questions affecting only individual members, including legal and factual issues relating to damages.

51. The named Plaintiffs are typical of the members of each class. Like the other members of the Injunction Class, the named Plaintiffs have been, and likely will be again, victims of the NYPD's policy, practice, and/or custom of suspicionless checkpoint stops in that they have been and likely will continue to be, stopped without the reasonable articulable suspicion of criminal conduct required under the Fourth Amendment. Like the other members of

the Damages Class, as a result of being stopped at a suspicionless checkpoint, the named Plaintiffs were questioned, searched, unjustifiably detained, and maliciously prosecuted. Like the other members of both the Injunction and Damages Class, the named Plaintiffs risk being stopped in the future. Mr. McLennon and Mr. Price are residents of New York City and continue to regularly travel on the streets, highways, thoroughfares, and/or service ramps in the City of New York where the NYPD conducts its suspicionless checkpoint stops. Mr. Augustine is susceptible, upon every visit to New York City, of being stopped in the same patently impermissible way should this unconstitutional practice not be enjoined from continuing.

52. The legal theories under which the named Plaintiffs seek declaratory and injunctive relief are the same or similar to those on which all members of the class will rely, and the harms suffered by the named Plaintiffs are typical of the harms suffered by the class members.

53. The named Plaintiffs have a strong personal interest in the outcome of this action, have no conflicts of interest with members of either class, and will fairly and adequately protect the interests of each class. As long as the NYPD engages in its policy, practice and/or custom of suspicionless stops at these checkpoints, the named Plaintiffs are, and will remain, at high risk of being illegally stopped again by the NYPD.

54. The named Plaintiffs are collectively represented by the members of the law offices of Fisher & Byrialsen PLLC, Beldock Levine & Hoffman LLP, and the Special Litigation Unit of the Legal Aid Society. Counsels collectively are experienced civil rights counsels and/or have litigated a wide-range of class action lawsuits. Counsel for the named Plaintiffs have the resources, expertise, and experience to prosecute this action, and know of no conflicts among members of the class or between the attorneys and members of the class.

55. The Injunction Class should be certified pursuant to Rule 23(b)(2) of the Federal Rules of Civil Procedure because the Defendants have acted on grounds generally applicable to the class, thereby making class-wide declaratory and injunctive relief appropriate.

56. The Damages Class should be certified pursuant to Rule 23(b)(3) because questions of law or fact common to the members of the class predominate over any questions affecting only individual class members and a class action is superior to other available methods for the fair and efficient adjudication of the controversy.

STATEMENT OF FACTS

Required Checkpoint Procedures

57. A checkpoint stop is unquestionably a seizure within the meaning of the Fourth Amendment. Thus, establishing a lawful traffic checkpoint requires a balance between the promotion of a significant public purpose, such as preventing serious motor vehicle violations, and the need to protect an individual's right to be free from unreasonable searches and seizures.

58. Since checkpoint stops are conducted without the reasonable, individualized suspicion otherwise required of police seizures, the Supreme Court and the New York Court of Appeals have strictly regulated checkpoint stops. Among other things, the law has long required checkpoints be carried out pursuant to a uniform procedure embodying explicit, neutral limitations on the conduct of individual officers and which affords little discretion to operating personnel. Lawful checkpoints must also maintain adequate precautions as to safety, lighting and fair warning of the existence of the checkpoint.

59. Accordingly, the NYPD, in its Patrol Guide, promulgated procedures and guidelines describing the purposes of a legitimate checkpoint and the functions to be performed by all personnel involved in establishing and conducting the checkpoint – from the commanding

officer to the supervisor to the officer assigned to the checkpoint – and the records to be maintained on a vehicle checkpoint form, including the number of vehicles stopped.

60. Upon information and belief, the purpose of Defendants’ misuse of “stand out” and/or “step out” enforcement at the checkpoints where Plaintiffs were stopped was to avoid having to comply with the requirements imposed by the Patrol Guide, without regard to the strict federal and state constitutional requirements for lawful checkpoints.

The Experiences of All Class Members

61. All members of each class were traveling on the streets, highways, thoroughfares, and service ramps in the City of New York when they were stopped as a result of the NYPD’s policy, practice, and/or custom of conducting suspicionless, unregulated checkpoint stops.

62. Each class member was stopped by NYPD officers without reasonable, articulable suspicion.

63. The NYPD did not conduct these particular suspicionless checkpoint stops pursuant to any standardized written procedure.

64. The NYPD did not prepare a vehicle checkpoint form with respect to these stops.

65. Rather, the practice, policy, and/or custom of the NYPD and Highway Patrol officers and personnel, as exemplified by the conduct of Officers Penney, Konkowski, Loukopoulos, Bistany and Luti in their illegal stops of Plaintiffs, was to conduct such stops in the following manner:

- a. stops are conducted in the late hours of the night or early hours of the morning;
- b. stops occur on service ramps off of highways and thoroughfares;

c. no warning signs are placed at the entrance of the service ramps or anywhere on the surrounding highway or thoroughfare indicating that an NYPD-enforced stop is ahead;

d. the service ramps where stops occur are dark, have one lane and one direction of travel so that when a vehicle approaches and becomes aware a *de facto* checkpoint is taking place ahead, choosing to turn around or reverse becomes impossible;

e. marked and unmarked NYPD issued vehicles, including vehicles disguised as taxi cabs, are parked on the curved roadway of the service ramps in such a manner that they protrude into the roadway (1) causing oncoming cars to abruptly reduce speed in order to avoid hitting the vehicle; (2) causing traffic on the service ramps to slow down or at times, come to a permanent stop; and (3) creating a dangerous condition for all oncoming traffic entering the service ramps at normal rates of speed;

f. no cones, caution tape, or service lights are placed around the NYPD issued vehicles to prevent oncoming vehicles from hitting them;

g. officers shine a flashlight in the direction of the slowed or stopped vehicles to prompt the drivers to stop and lower their windows;

h. officers positions themselves so close to the slowed or stopped vehicle that drivers would not feel as if they could drive off and go about their business;

i. in addition to generalized questions, such as asking for the driver's name and address or asking to view the driver's license, officers ask targeted questions, such as inquiring where the driver is going or if the driver had been drinking, so that such a driver would feel she or he was the target of criminal suspicion;

j. during such questioning, officers shine a flashlight into the windows of the vehicle, enabling them to see parts of the vehicle that would not be otherwise be visible had it been traveling at a normal rate of speed;

k. individual officers conducting the stops have complete discretion to stop vehicles as they choose;

l. no information regarding these stops is recorded in NYPD issued forms, memobooks, digital databases, or written logs;

m. no specialized paperwork is completed or used in association with these stops; and

n. there is no supervisory oversight over the enforcement of the checkpoint stops.

66. In an effort to obscure these unlawful checkpoint stops when prosecuting people arrested at these checkpoints, officers then routinely use a false justification for the stops, such as a window or mirror obstruction or defective light, to fabricate an individualized suspicion for stopping the Plaintiffs' vehicles. The officers then sign false accusatory instruments incorporating the pretextual basis for the stop and testify untruthfully regarding that fabricated justification.

67. These suspicionless checkpoint stops fail to comply with any of the safeguards required for vehicle checkpoints, including but not limited to the requirement that "stops be carried out pursuant to a plan embodying explicit, neutral limitations on the conduct of individual officers" so that the stops are not the result of unconstrained officer discretion, and that stops are recorded in a manner that allows for meaningful "post-stop judicial review." *See*

People v. Abad, 98 N.Y.2d 12 (2002); *Matter of Muhammad F.* and *People v. Boswell*, 94 N.Y.2d 136 (1999); *People v. Scott*, 63 N.Y.2d 518 (1984).

68. All members of the Injunction Class have been subjected to unlawful and unreasonable detainment as a result of these suspicionless, unregulated checkpoint stops.

69. All members of the Damages Class, in addition to the foregoing, have been subjected to arrest and/or prosecution as a result of these suspicionless, unregulated checkpoint stops.

The Experience of Named Plaintiff Winston McLennon

70. On October 28, 2011 at approximately 2:55 a.m., Mr. McLennon was driving eastbound on the Grand Central Parkway.

71. He approached a service ramp to get onto the Long Island Expressway.

72. There were no signs posted on the Grand Central Parkway or near the entrance of the service ramp indicating that the NYPD was conducting a checkpoint stop ahead.

73. This one-lane service ramp, with only one overhead street light, had a sharp curve in the roadway, surrounded on both sides by trees and foliage, preventing on-coming traffic from being able to see what was happening ahead.

74. After traveling past the sharp curve, Mr. McLennon was abruptly forced to slow his vehicle upon seeing defendant Officer Penney standing in the middle of the service ramp and a yellow taxi cab, with Officer Konkowski inside, parked in such a manner that it protruded into the roadway.

75. There were no cones, caution tapes, ropes, signs, or flares around the yellow taxi cab to alert oncoming traffic of its presence.

76. Officer Penney shined a flashlight at Mr. McLennon's vehicle, obstructing his view.

77. Since the service ramp had one lane and the road ahead was blocked by Officer Penney and the parked yellow taxi cab, Mr. McLennon was forced to stop.

78. Officer Penney then asked Mr. McLennon a series of targeted questions, including but not limited to, whether he had been drinking and/or what he had to drink.

79. During said questioning, Officer Penney shined his flashlight in each of the windows of Mr. McLennon's vehicle attempting to look at the contents inside.

80. Officer Penney ordered Mr. McLennon to exit the vehicle, searched him, and subjected Mr. McLennon to a portable breathalyzer test.

81. Officer Penney did not record any of Mr. McLennon's statements in a NYPD issued memobook or on standardized paperwork during this time.

82. Upon information and belief, a Vehicle Checkpoint Form (PD 371-143), required for lawful checkpoints, was not filled out or provided to the District Attorney's Office or the Court.

83. Mr. McLennon was arrested and arraigned later that day on violations of the New York Vehicle and Traffic Law.

84. Officer Penney signed the criminal court complaint against Mr. McLennon claiming, as a pretext for the stop, that McLennon had violated the Vehicle and Traffic Law by having air fresheners hanging from his rear view mirror.

85. Mr. McLennon was released on his own recognizance, but was forced to appear in court numerous times.

86. On April 3, 2012, New York State Criminal Judge Stephanie Zaro held a pretrial suppression hearing in Mr. McLennon's case.

87. Officer Penney testified at the hearing, falsely claiming as the basis for stopping Mr. McLennon's vehicle that he was able to see six air fresheners hanging from Mr. McLennon's rear view mirror from fifty feet away, testimony Judge Zaro found to be "highly incredible."

88. On July 31, 2012, Judge Zaro issued a decision in *People v. McLennon*, Docket No. 2011QN058200 (N.Y. Criminal Court Queens Cnty. July 31, 2012), finding that the NYPD patrol enforcement conducted by Officers Penney and Konkowski constituted a checkpoint stop subject to particularized procedures; that said procedures were not followed; that the officers' basis for stopping Mr. McLennon was incredible; and that the officers had no legal right to stop Mr. McLennon's vehicle and subsequently arrest him. Judge Zaro suppressed all evidence against Mr. McLennon.

89. On November 21, 2012, Mr. McLennon's case was dismissed and sealed.

90. As a result of Mr. McLennon's unlawful stop, arrest, imprisonment and malicious prosecution he suffered, among other things, loss of liberty, embarrassment, humiliation, and emotional, mental, and psychological pain and suffering, and lost income. Mr. McLennon also lost his job as a result of his wrongful arrest and malicious prosecution.

Defendants' Actual Notice of their Illegal Practice

91. In addition to Judge Zaro's decision in Mr. McLennon's case, Criminal Court Judges in Queens County issued four other written decisions finding that the practices used by Defendants to stop drivers on the Grand Central Parkway-Long Island Expressway service ramp constituted an unlawful suspicionless checkpoint in violation of the Fourth Amendment and the laws of New York: *People v. Nandlall*, Docket No. 2011QN029355 (June 14, 2012) (Michael J.

Yavinsky, J.); *People v. Rakitzis*, Docket No. 2012QN000287 (June 27, 2012) (Michael J. Yavinsky, J.); *People v. Perez*, Docket No. 2011QN056990 (Feb. 13, 2013) (Mary O'Donoghue, J.); and *People v. Garcia*, Docket No. 2011QN043391 (Mar. 12, 2014) (David M. Hawkins, J.).

92. In each case, the judge found that the officer's purported explanation for the stop was incredible and suppressed any evidence found as a result of the stop.

93. On August 16, 2012, Legal Aid Society employees served copies of the decisions in *People v. McLennon* and *People v. Rakitzis* upon the NYPD at One Police Plaza, and the NYPD Highway Unit 3, at 198-15 Grand Central Parkway, Queens.

94. Nonetheless, Defendants' unlawful policy, practice and/or custom continued and supervising officials rewarded the Highway Patrol Officers conducting such illegal suspicionless checkpoint stops with official commendations, public praise and/or other recognition.

95. As a result, countless further unlawful stops were conducted, including the illegal stops of Plaintiffs Karlick Price and Stephen Augustine.

The Experience of Plaintiff Karlick Price

96. On June 13, 2014 at approximately 1:45 a.m., Mr. Price was driving eastbound on the Grand Central Parkway.

97. He approached a service ramp to go onto the Long Island Expressway.

98. There were no signs posted on the Grand Central Parkway or near the entrance of the service ramp indicating that the NYPD was conducting a checkpoint stop ahead.

99. This one-lane service ramp, with only one overhead street light, had a sharp curve in the roadway, surrounded on both sides by trees and foliage, preventing on-coming traffic from being able to see what was happening ahead.

100. After traveling past the sharp curve, Mr. Price was abruptly forced to slow his vehicle and come to a complete stop upon seeing approximately three vehicles ahead of him completely stopped on the service ramp and an unmarked burgundy-colored vehicle, with defendant Highway Patrol Officer John Doe #1 inside, parked in such a way that it protruded into the roadway.

101. There were no cones, caution tapes, ropes, signs, or flares around the unmarked burgundy-colored vehicle to alert oncoming traffic of its presence.

102. Mr. Price saw an individual wearing a dark-colored outfit walk into the middle of the service ramp.

103. As the individual approached closer to Mr. Price's vehicle, Mr. Price recognized the individual as a uniformed police officer.

104. That police officer, now known to be Officer Bistany, shined a flashlight in the front window of Mr. Price's vehicle.

105. Officer Bistany asked Mr. Price for his license.

106. Although Mr. Price provided his license, Officer Bistany told Mr. Price to pull over.

107. Officer Bistany then asked Mr. Price a series of targeted questions, including but not limited to, whether he had been drinking and/or what he had to drink.

108. During said questioning, Officer Bistany shined his flashlight in each of the windows of Mr. Price's vehicle attempting to look at the contents inside.

109. Officer Bistany ordered Mr. Price to exit the vehicle, searched him, and subjected Mr. Price to a portable breathalyzer test to which he blew a .000%.

110. Officer Bistany did not record any of Mr. Price's statements in a NYPD issued memobook or on standardized paperwork during this time.

111. Upon information and belief, no Vehicle Checkpoint Form (PD 371-143) was filled out or provided to the District Attorney's Office or the Court.

112. Mr. Price was taken to the 112th Precinct and, notwithstanding the results of his portable breathalyzer test, was asked to submit to a chemical test.

113. Mr. Price refused resulting in his license being suspended for two months.

114. Mr. Price was arrested and arraigned later that day on violations of the New York Vehicle and Traffic Law.

115. Officer Bistany signed the criminal court complaint against Mr. Price claiming, as a pretext for the stop, that Price had violated the Vehicle and Traffic Law by having tinted windows and an freshener hanging from his rear view mirror.

116. Mr. Price's vehicle did not have tinted windows and there was no air freshener obstructing his view.

117. Mr. Price was released on his own recognizance, but was forced to appear in Court numerous times.

118. Mr. Price's license was reinstated when Officer Bistany failed to appear at the refusal hearing.

119. On February 2, 2015, Mr. Price accepted an adjournment in contemplation of dismissal with a one month sealing.

120. On March 2, 2015, his case was dismissed and sealed.

121. As a result of Mr. Price's unlawful stop, arrest, and imprisonment, he suffered, among other things, loss of liberty, embarrassment, humiliation, and emotional, mental, and psychological pain and suffering.

122. Mr. Price's arrest and prosecution occurred after the NYPD and Highway Patrol Unit 3 received personal service of the prior judicial determinations that the *de facto* checkpoints being conducted were unconstitutional.

The Experience of Plaintiff Stephen Augustine

123. On November 28, 2014 at approximately 11:30 p.m., Mr. Augustine was driving eastbound on the Grand Central Parkway.

124. Inside the vehicle, in addition to Mr. Augustine, were two passengers--his mother, and his cousin, a Bronx County Criminal Court Officer, Joseph Spiver.

125. Mr. Augustine approached a service ramp to go onto the Long Island Expressway.

126. There were no signs posted on the Grand Central Parkway or near the entrance of the service ramp indicating that the NYPD was conducting a checkpoint stop ahead.

127. This one-lane service ramp, with only one overhead street light, had a sharp curve in the roadway, surrounded on both sides by trees and foliage, preventing on-coming traffic from being able to see what was happening ahead.

128. Mr. Augustine's vehicle was unable to proceed onto the service ramp but, rather, was forced to come to a complete stop as officers from Highway Patrol Unit 3 were arbitrarily stopping vehicles in a *de facto* checkpoint on the ramp and creating traffic congestion.

129. There were approximately 10 to 15 vehicles stopped ahead of Mr. Augustine.

130. The traffic congestion continued from the service ramp onto the Grand Central Highway disrupting the flow of traffic and creating a dangerous condition by causing vehicles to come to a complete stop on the busy and fast-moving thoroughfare.

131. Vehicles were permitted to slowly proceed through the *de facto* checkpoint but only after a police officer, Officer Luti, had shined a flashlight in the vehicles's windows and signaled by gesture that the cars could proceed.

132. A marked NYPD police vehicle, with defendant Highway Patrol Officer John Doe #2 inside, was parked in such a way that it protruded into the roadway.

133. There were no cones, caution tapes, ropes, signs, or flares around the marked NYPD police vehicle to alert oncoming traffic of its presence.

134. As Mr. Augustine slowly proceeded on the service ramp toward Officer Luti, he was again caused to come to a complete stop.

135. Officer Luti shined his flashlight into the windows of Mr. Augustine's vehicle.

136. Officer Luti asked Mr. Augustine for his license.

137. Although Mr. Augustine provided his license, Officer Luti told Mr. Augustine to pull over and get out of the vehicle.

138. Officer Luti then asked Mr. Augustine a series of targeted questions, including but not limited to, whether he had been drinking and/or what he had to drink.

139. During said questioning, Officer Luti shined his flashlight in each of the windows of Mr. Augustine's vehicle attempting to look at the contents inside.

140. Officer Luti ordered Mr. Augustine to exit the vehicle, searched him, and subjected Mr. Augustine to a portable breathalyzer test to which he blew a .000%.

141. Officer Luti did not accurately record any of Mr. Augustine's statements in an NYPD issued memobook or on standardized paperwork during this time.

142. Upon information and belief, at no time was a Vehicle Checkpoint Form (PD 371-143) filled out or provided to the District Attorney's Office or the Court.

143. Mr. Augustine was taken to the 112th Precinct and, notwithstanding the results of his portable breathalyzer test, was again asked to be subjected to a chemical test. Mr. Augustine again blew a .000%.

144. Mr. Augustine was arrested and arraigned later that day on violations of the New York Vehicle and Traffic Law.

145. Officer Luti signed the criminal court complaint against Mr. Augustine claiming, as a pretext for the stop, that he was conducting a "safety checkpoint."

146. That day, Mr. Augustine pled to disorderly conduct to resolve the Vehicle and Traffic Law infractions charged against him without the need to make repeated court appearances.

147. As a result of Mr. Augustine's unlawful stop, arrest, and imprisonment, he suffered, among other things, loss of liberty, embarrassment, humiliation, and emotional, mental, and psychological pain and suffering.

148. Mr. Augustine's arrest and prosecution occurred after the NYPD and Highway Patrol Unit 3 received personal service of the prior judicial determinations that the *de facto* checkpoints being conducted were unconstitutional.

Suspicionless and Unconstitutional Checkpoint Stops are a Direct and Proximate Result of Defendants' Policies, Practices, and/or Customs

149. The pervasive unconstitutional practices of the NYPD are a direct and proximate result of policies, practices and/or customs devised, implemented, enforced and sanctioned by

the City and supervisory officials and their confederates whose identities are presently unknown, with the knowledge that such policies, practices, and/or customs would lead to violations of the Fourth and Fourteenth Amendments.

150. Those policies, practices and/or customs include: (a) failing to properly screen, train and supervise NYPD officers, (b) failing to adequately monitor and discipline NYPD officers, and (c) encouraging, sanctioning and failing to rectify the NYPD's custom and practice of suspicionless stops.

Failure to Properly Screen, Train and Supervise NYPD Officers

151. Although fully aware that the work of the NYPD demands extensive training, superior judgment and close supervision, the City and supervising NYPD officials failed to properly screen, train, and supervise NYPD officers, knowing that such failures would result in Fourth and Fourteenth Amendment violations.

152. The inadequate screening, training and supervision of the NYPD is a direct and proximate cause of the NYPD's rampant unconstitutional stops. As a direct and proximate cause of the defendants' failure to screen, train, and supervise NYPD officers, hundreds of people have been subjected to unlawful stops. By failing to properly screen, train, and supervise NYPD officers, the City, Commissioner Bratton, the other NYPD supervisory defendants, and supervising officials and/or personnel of the NYPD have acted recklessly and with deliberate indifference to the constitutional rights of those who would come into contact with the NYPD.

Failure to Monitor and Discipline NYPD Officers

153. The NYPD's widespread abuses are also a direct and proximate result of the failure of the City, Commissioner Bratton, the other NYPD supervisory defendants, and supervising officials and/or personnel of the NYPD to properly and adequately monitor,

discipline and take necessary corrective action against NYPD officers who engage in, encourage or conceal unconstitutional practices.

154. Despite the NYPD having received personal service of prior judicial decisions that the NYPD's practice of conducting *de facto* checkpoints at this location were patently illegal and unconstitutional, these Defendants knowingly, deliberately, and recklessly have failed:

- a. to take any corrective measures to stop the practice and/or custom of unlawful suspicionless checkpoint stops in the City of New York;
- b. to take appropriate disciplinary action and corrective measures against NYPD officers who have engaged in unlawful suspicionless checkpoint stops;
- c. to devise and implement appropriate oversight, disciplinary and remedial measures in the face of the extensive evidence that the checkpoint stops were deemed unconstitutional by judiciary officials;
- d. to conduct adequate auditing to determine if the stops and arrests conducted by Highway Patrol officers comply with the NYPD's written policy and constitutional requirements regarding checkpoint stops; and
- e. to take sufficient corrective and remedial action against NYPD Highway Patrol officers who provide fabricated, false, or impermissible justifications for stops.

155. The City, Commissioner Bratton, the other NYPD supervisory defendants, and supervising officials and/or personnel of the NYPD have failed to properly and adequately monitor, discipline and take necessary corrective action against NYPD officers, knowing that such omissions would lead to Fourth and Fourteenth Amendment violations. By such acts and omissions, these Defendants have acted recklessly and with deliberate indifference to the constitutional rights of those who would come into contact with the NYPD.

**Encouraging, Sanctioning and Failing to Rectify
Suspicionless and Unconstitutional Checkpoint Stops**

156. With the knowledge that such acts and omissions create a likelihood of Fourth and Fourteenth Amendment violations, the City, Commissioner Bratton, the other NYPD supervisory defendants, and supervising officials and/or personnel of the NYPD also have encouraged its officers with commendations and public praise rather than taking steps to rectify these abusive and unconstitutional practices.

157. As a direct and proximate result of the above policies, practices and/or customs, hundreds of people have been, and will continue to be, subjected to unconstitutional stops, searches and seizures by Highway Patrol officers without the legally permissible articulable level of suspicion. Through such acts and omissions, the City and supervising NYPD officials have acted recklessly and with deliberate indifference to the constitutional rights of individuals who have or will come into contact with the Highway Patrol.

**The Pattern and Practice of Unlawful Checkpoint Stops
and Resulting Malicious Prosecutions**

158. Well over one hundred cases stemming from arrests made at unlawful highway checkpoints have been docketed in Queens Criminal Court since this practice began around 2009 (see Addendum).

159. These prosecutions follow a familiar pattern as reflected in the experiences of the named plaintiffs.

160. These prosecutions reflect only a small portion of the individuals who have been unconstitutionally stopped and searched at these unlawful checkpoints.

161. This ongoing practice of unlawful checkpoints has been documented by the Legal Aid Society as recently as September 5, 2014 – well after the NYPD and Highway Patrol Unit 3 were personally notified of the obvious illegality of these checkpoints – when an attorney with the Legal Aid Society captured video of NYPD officers carrying out these unlawful checkpoints.

162. Mr. Augustine was arrested two month after that, on November 28, 2014, at the same location and under similar conditions.

163. The same type of unlawful checkpoint stops have been observed as recently as February 2015.

164. Upon information and belief, Defendants have taken no action and made no effort to stop this unlawful practice. Even in the face of five separate written decisions by Queens Criminal Court judges condemning this illegal practice, the Defendants' unlawful policy, practice and/or custom continues.

FIRST CAUSE OF ACTION

(Pursuant to 42 U.S.C. § 1983 Against All Defendants for Violations of the Fourth and Fourteenth Amendments)

165. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

166. The Defendants have implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of stopping the members of each class without the reasonable articulable suspicion of criminality required by the Fourth and Fourteenth Amendments.

167. As a result of this policy, practice and/or custom, the Defendants have unlawfully stopped and continue to unlawfully stop members of the Injunction Class.

168. As a result of these stops, the Defendants have falsely arrested and maliciously prosecuted members of the Damages Class.

169. The NYPD's constitutional abuses and violations were, and are, directly, and proximately caused by policies, practices and/or customs devised, implemented, enforced, encouraged and sanctioned by the City and supervising NYPD officials including: (a) the failure to adequately and properly screen, train, and supervise NYPD officers; (b) the failure to properly and adequately monitor and discipline NYPD officers; and (c) the overt and tacit encouragement and sanctioning of, and the failure to rectify, the NYPD's suspicionless stops.

170. Each of the Defendants has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of the named Plaintiffs and other members of the class. As a direct and proximate result of the acts and omissions of each of the Defendants, the Fourth Amendment rights of the named Plaintiffs and other class members have been violated.

171. By acting under color of state law to deprive the named Plaintiffs and other class members of their rights under the Fourth and Fourteenth Amendment, the Defendants are in violation of 42 U.S.C. § 1983, which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

172. The NYPD conducts illegal stops in areas where class members travel -- to places where class members reside, work, or visit. There is, therefore, a real and immediate threat that the Fourth and Fourteenth Amendment rights of the named Plaintiffs and other class members will be violated by NYPD officers in the future. Moreover, because defendants' policies, practices and/or customs subject the named Plaintiffs and other class members to stops without any reasonable articulable suspicion of criminality, the named Plaintiffs and other class members

cannot alter their behavior to avoid future violations of their constitutional and civil rights at the hands of the NYPD.

173. Only an injunction is certain to end Defendants' unlawful practice. Defendants have persisted in carrying out this illegal practice even after being personally notified of judicial decisions declaring the practice illegal. Upon information and belief, Defendants have ceased, or slowed the practice at various times, only to take it back up when official scrutiny has subsided. Accordingly, an injunction is necessary and appropriate.

174. The named Plaintiffs and other members of the Injunction Class have no adequate remedy at law and will suffer serious and irreparable harm to their constitutional rights unless defendants are enjoined from continuing the NYPD's policy, practice and/or custom of unconstitutional stops, and the policies, practices and/or customs that have directly and proximately caused such constitutional abuses.

175. As a direct and proximate result of the acts and omissions of the Defendants, the named Plaintiffs, and the members of the classes they seek to represent, have been deprived of their rights under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

176. As a direct and proximate result of the acts and omissions of the Defendants, the named Plaintiffs, and the members of the Damages Class they seek to represent, have suffered injuries and damages as described above.

SECOND CAUSE OF ACTION

(Named Plaintiffs' Claims Pursuant to 42 U.S.C. § 1983 Against Officers Penney, Konkowski, Bistany, Luti and John and Jane Does)

177. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

178. The conduct of Defendants Penney, Konkowski, Bistany, Luti, and John and Jane Does in stopping and searching Plaintiffs, were performed under color of law and without any reasonable suspicion of criminality or other constitutionally permissible grounds.

179. As a direct and proximate result of such acts, Defendants Penney, Konkowski, Bistany, Luti, and John and Jane Does deprived Plaintiffs of their Fourth and Fourteenth Amendment rights in violation of 42 U.S.C. § 1983.

180. Plaintiffs were subjected to an unlawful detainment, false arrest, false imprisonment and malicious prosecution.

181. As a direct and proximate result of those constitutional abuses, Plaintiffs have suffered, and will continue to suffer, physical, mental and emotional pain and suffering, mental, anguish, embarrassment and humiliation.

182. As a direct and proximate result of those constitutional abuses, Plaintiffs have suffered lost wages.

183. The acts of Defendants Penney, Konkowski, Bistany, Luti, and John and Jane Does were intentional, wanton, malicious, reckless and oppressive, thus, entitling Plaintiffs to an award of punitive damages.

REQUEST FOR RELIEF

WHEREFORE, Plaintiffs respectfully requests that this Court will:

a) Enter an order certifying this action as a class action pursuant to Rule 23(a), (b)(2), and (b)(3) of the Federal Rules of Civil Procedure in the manner described above herein, with the named Plaintiffs as class representatives;

b) Enter a class-wide judgment declaring that the City and the NYPD's policy, practice and/or custom of suspicionless checkpoint stops challenged herein is unconstitutional in that it violates the Fourth and Fourteenth Amendments to the United States Constitution and that its implementation, enforcement and sanctioning by NYPD officers is a direct and proximate result of the following practices and or customs of the City:

- i. encouraging, sanctioning, and failing to rectify the NYPD's unconstitutional checkpoint stops;
- ii. failing to adequately train and supervise Highway Patrol officers;
- iii. failing to adequately monitor the NYPD and its officers, including Highway Patrol Officers, and discipline officers who violate constitutional rights.

c) Issue an order for the following injunctive relief:

- i. enjoining the NYPD from continuing its policy, practice and/or custom of unlawful suspicionless checkpoint stops; and
- ii. requiring the City and NYPD Commissioner to institute and implement improved policies and programs with respect to training, supervision, and discipline designed to eliminate the NYPD's policy, practice and/or custom of unlawful suspicionless checkpoint stops.

d) Award the named Plaintiff and members of the Damages class compensatory damages in amounts that are fair, just and reasonable, to be determined at trial;

e) Award the named Plaintiff and members of the Damages class punitive damages against the individual defendants in an amount to be determined at trial;

f) Award the named Plaintiff and members of the plaintiff class reasonable attorneys' fees and costs; and

g) Grant such other and further relief as this Court shall find as appropriate and just.

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